



INTERNAL SECURITY

MODULE - 6

LEGAL FRAMEWORK TO TACKLE TERRORISM

1. TERRORIST AND DISRUPTIVE ACTIVITIES (PREVENTION) ACT



1 TADA was an anti-terrorism law which was in force between 1985 and 1995 in the background of the Punjab insurgency.

2 It was allowed to lapse in 1995 due to widespread allegations of abuse.

3 It was the 1st anti-terrorism law legislated by the government which gave wide powers to law enforcement agencies for dealing with terrorist and socially disruptive activities.

4 The police were not obliged to produce a detainee before a judicial magistrate within 24 hours.

5 The accused could be detained up to one year without even filing a charge sheet.

6 Confession made to police officers was admissible as evidence in the court of law.

LEGAL FRAMEWORK TO TACKLE TERRORISM

2. THE PREVENTION OF TERRORISM ACT



1 POTA was an anti-terrorism legislation enacted in 2002 following the Parliamentary attacks of 2001.

2 Analogous to the provisions contained in TADA, the law provided that a suspect could be detained for up to 180 days without filing of the charge-sheet in court.

3 It also allowed law enforcement agencies to withhold the identities of witnesses, and to treat a confession made to the police as an admission of guilt.

4 POTA was repealed in 2004.

The UAPA is an upgrade over TADA and POTA

LEGAL FRAMEWORK TO TACKLE TERRORISM

3. UNLAWFUL ACTIVITIES PREVENTION ACT

UAPA was enacted in 1967 and consecutively got amended in 1969, 1972, 1986, 2004, 2008, 2012 and very recently in 2019.



Unlawful Activities (prevention) Act **UAPA**

1 It was enacted after Indo-China war and the threat imposed by DMK with secessionist idea of separating Tamil Nadu from India as a part of their election manifesto.

2 The act provided for more effective prevention of certain unlawful activities.

3 *2004 Amendment:* Criminalised terror financing, holding proceeds of terrorism, membership of a terrorist organisation etc.

4 *2008 Amendment:* It enlarged the scope of the term “funds” to ensure a broader coverage of financing terrorist activities.

5 *2012 Amendment:* It further expanded the vague definition of “terrorist act” to include offences that threaten the country’s economic security.

LEGAL FRAMEWORK TO TACKLE TERRORISM

3. UNLAWFUL ACTIVITIES PREVENTION ACT



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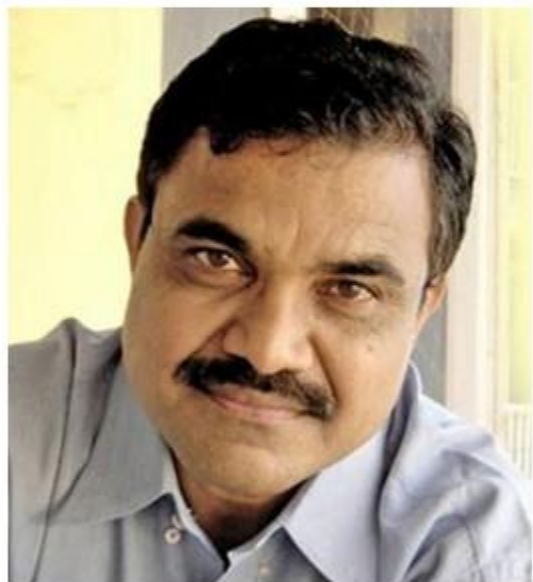
BENEFITS WITH AMENDMENT

- Increasing threats emanating across the borders.
- Many individuals escape the radar.
- Delay in the current process as prior permission is required from the respective state DGPs to attach the proceeds of terrorism.
- Cases having international and inter-state ramifications are better handled by an agency like NIA and not by state.
- By empowering officers with the rank of inspectors to investigate the case will solve the problems of human resource crunch.

LEGAL FRAMEWORK TO TACKLE TERRORISM

3. UNLAWFUL ACTIVITIES PREVENTION ACT

CONCERNS WITH AMENDMENT



ANAND TELTUMBDE



THIRUMURUGAN GANDHI

- Central govt can declare anyone as a terrorist.
- Many human rights activist, writers, journalist run the risk of being declared as a terrorist.
- Goes against the judicial prudence if a person is labelled as terrorists merely on the basis of speech and thought
- In violation of principles of natural justice.
- It does not provide any legal consequence in case an individual is designated a terrorist.
- The only statutory remedy is to make an application before the Central Govt for de-notification.
- Case of Independent Review Committee.

LEGAL FRAMEWORK TO TACKLE TERRORISM

3. UNLAWFUL ACTIVITIES PREVENTION ACT

WHAT IS DEFINED AS 'UNLAWFUL ACTIVITY'?

It is defined as any action taken ...

i

“Which is intended or supports any claim, **to bring about the cession (giving up of rights) of a part of the territory of India** or the secession of a part of the territory of India from the Union, or **which incites any individual or group of individuals to bring about such cession or secession**”.

ii

“Which disclaims, questions, disrupts or is intended to disrupt **the sovereignty and territorial integrity of India**”.



iii

“Which causes or is intended to cause **disaffection against India**”.



LEGAL FRAMEWORK TO TACKLE TERRORISM



3. UNLAWFUL ACTIVITIES PREVENTION ACT

LIBERTY VERSUS NATIONAL SECURITY!



UNLAWFUL ACTIVITIES (PREVENTION) AMENDMENT BILL, 2019

6 The person loses liberty and his house is associated with someone who has been designated as a terrorist, under the Act.

5 Judicial determination subsequently, cannot be a remedy.

4 The Act carries no safeguards against its misuse at an individual level.

1 No link to any organisation needs to be proved by the individual.

2 The people consorting in any manner with a notified individual can also face problems.

3 Any utterance on social media can be construed as one which causes or is intended to cause disaffection against India.

Those who would give up essential Liberty, to purchase a little temporary Safety, deserve neither Liberty nor Safety.

LEGAL FRAMEWORK TO TACKLE TERRORISM

4. NATIONAL INVESTIGATION ACT



गृह मंत्रालय
MINISTRY OF
HOME AFFAIRS

- It is more powerful than CBI.
- NIA has powers to take **suo motu (on its own)** cognisance of terrorist activity in any part of India.
- It can register a case and enter any State without needing permission from its Govt, and to investigate and arrest people.



WHAT EXACTLY NIA CAN DO AND CANNOT?

- NIA can investigate the cases listed in the Act's schedule.
- They largely deal with the security and integrity of the country.



- NIA cannot probe murder and rape cases which come under the Indian Penal Code.

LEGAL FRAMEWORK TO TACKLE TERRORISM

4. NATIONAL INVESTIGATION ACT

1 EXTRA-TERRITORIAL JURISDICTION

WHY WAS IT IN NEWS?

The Parliament recently passed the National Investigation Agency (Amendment) Act 2019, which seeks to expand the powers and jurisdiction of the NIA.



1 The bill allows the agency to register a case, **when Indians living abroad or India's assets based in a foreign country comes under attack from terrorists.**

2 The new provision will allow NIA to register cases, if an **Indian embassy comes under attack abroad.**

3 At the same time, it can register cases, if **Indian underwater cables of communication** in international waters are **sabotaged.**

LEGAL FRAMEWORK TO TACKLE TERRORISM

4. NATIONAL INVESTIGATION ACT

2 SETTING UP OF SPECIAL COURTS



Now the central government may designate Sessions Courts as Special Courts for the trial of scheduled offences, but in consultation with the Chief Justice of the High Court under which the Sessions Court is functioning.

PRESENT PRACTICE!

Setting up of special courts in any state would take six to nine months because High Court's concurrence is to be obtained. A judge has to be nominated, and a court had to be set up. It takes sufficient time.

WHAT CHANGED?

Now, existing sessions courts will be allowed to function as special courts. Hence, trial can start immediately.

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4. NATIONAL INVESTIGATION ACT

3 ADDITION OF OFFENCES



- 1 The offences added to NIA Act Schedule are
 - Human trafficking (Sections 370, 370A of *IPC, 1860*)
 - Manufacture or sale of prohibited arms (Section 25(1AA) of *Arms Act, 1959*)
 - Cyber crimes (Section 66F of *IT Act 2000*)
 - Explosive Substances Act, 2000.

- 2 Now, the NIA can prosecute people in standalone cases under these Acts.

LEGAL FRAMEWORK TO TACKLE TERRORISM

4. NATIONAL INVESTIGATION ACT

DRAFT QUESTION

Critically examine how the proposed amendments to NIA Act affect the federal structure of the Constitution.



BENEFITS WITH AMENDMENT

- So far the NIA could apply only those sections upon the accused which were a part of its Schedule.
- Now it can prosecute people in stand alone cases under these acts. For example, a person could be slapped with Arms Act provisions alone.
- It strengthened the provisions of NIA in comparison to the other investigating agencies of the world like FBI. Example: the case of Italian mariners.
- Setting up of special courts could fasten adjudication process.

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4. NATIONAL INVESTIGATION ACT

CONCERNS WITH AMENDMENT



- 1 There is a heavy potential of misuse if the government uses the investigating agencies for “**political vendetta**”.
- 2 Judiciary is already **overburdened**. This would further take away its attention from usual business of the courts.
- 3 Chhattisgarh challenged the constitutional validity of the NIA Act under Article 131. The agency has overriding powers over the State police, with **no provision for consent** from the State Govt. for its operations, is against the **federal spirit** of the Constitution.

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4. NATIONAL INVESTIGATION ACT

CONCERNS WITH AMENDMENT



The probe into the theft of computer components on under-construction indigenous aircraft carrier (IAC) Vikrant at the Cochin Shipyard has assumed a new significant dimension with the National Investigation Agency (NIA) invoking major sections and re-registering the FIR.

4 The Amendment Bill puts **Section 66F of the Information Technology Act** into the Schedule listing offences. Section 66F deals with cyber terrorism. But India does not have a data protection act and there is no definition of cyber terrorism.

5 The term “**affecting the interest of India**” is undefined and can be misused by governments to curb freedom of speech and expression.

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For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

For Information:

info.learningspacedigital@gmail.com

Visit us at:

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0866 244 44 72

98499 42299

94415 27588